

Amendment No. 1 to HB2091

Todd
Signature of Sponsor

AMEND Senate Bill No. 2173

House Bill No. 2091*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 70, Chapter 9, is amended by adding the following as a new section:

(a) No person shall operate an OHV within the North Cumberland wildlife management area (WMA) unless the person, or a passenger on the same OHV, possesses a valid North Cumberland OHV riding permit, a sportsman supplemental annual North Cumberland OHV riding permit, or a North Cumberland OHV guide permit.

(b) The agency may issue a North Cumberland OHV riding permit to a person who pays the appropriate permit fee. A North Cumberland OHV riding permit does not include guide privileges in the North Cumberland WMA. Beginning July 1, 2026, the North Cumberland OHV riding permit fee is:

- (1) Fifty dollars (\$50.00) for a nonresident one-day permit;
- (2) One hundred twenty-five dollars (\$125) for a nonresident three-day permit;
- (3) Two hundred dollars (\$200) for a nonresident seven-day permit;
- (4) Three hundred dollars (\$300) for a nonresident annual permit;
- (5) Twenty dollars (\$20.00) for a Tennessee resident one-day permit;
- (6) Thirty dollars (\$30.00) for a Tennessee resident three-day permit;
- (7) One hundred dollars (\$100) for a Tennessee resident seven-day permit; and

(8) One hundred fifty dollars (\$150) for a Tennessee resident annual permit.

(c)

(1) An annual or lifetime sportsman license issued by the agency does not include OHV riding privileges in the North Cumberland WMA.

(2) The holder of a valid annual or lifetime sportsman license may purchase a sportsman supplemental annual North Cumberland OHV riding permit from the agency. A sportsman supplemental annual North Cumberland OHV riding permit does not include guide privileges in the North Cumberland WMA.

(3) The agency may issue a sportsman supplemental annual North Cumberland OHV riding permit to the holder of a valid annual or lifetime sportsman license who pays the supplemental permit fee. Beginning July 1, 2026, the sportsman supplemental annual North Cumberland OHV riding permit fee is forty dollars (\$40.00).

(d)

(1)

(A) Except as provided in subdivision (d)(1)(B), a person shall not accept compensation for assisting others in OHV use while utilizing the North Cumberland WMA trail system unless the person possesses a valid North Cumberland OHV guide permit.

(B) A person is not required to possess a North Cumberland OHV guide permit if the only assistance that the person provides to OHV users in the North Cumberland WMA is roadside assistance, including, but not limited to, towing, battery starting and replacement, tire changes, lockout services, fuel delivery, and winching.

(2) In addition to permitting the privilege of accepting compensation for assisting others in OHV use while utilizing the North Cumberland WMA trail system, a North Cumberland OHV guide permit includes the privileges permitted by a North Cumberland OHV riding permit.

(3) The agency may issue a North Cumberland OHV guide permit to a person who pays the guide permit fee. Beginning July 1, 2026, the North Cumberland OHV guide permit fee is seven hundred dollars (\$700).

(e) The commission may promulgate rules to adjust the fees established in this section; provided, that such rules and regulations are consistent with § 70-1-206 and § 70-9-105, and that any increase to fees established in this part shall not become effective until July 1, 2030.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.